duty police personnel to investigate everything from petty theft to organised crime. Former CBI special director Rakesh Asthana, who also served as Delhi police commissioner, argues that dividing duties is essential. During his tenure, he created a separate investigation wing within the Delhi Police with dedicated manpower, calling it "the world's largest metropolitan force". But not everyone is convinced. An IPS officer in West Bengal warns that such a split could dent morale: "When those on street duty see investigators staying at the station, they might start questioning their own role."

SHODDY INVESTIGATIONS

Forensic investigators say most cases are lost not in courts but at crime scenes. Evidence is routinely trampled, contaminated or ignored within minutes. The 2008 Noida double murder offered a textbook example: poorly trained police officers allowed 15 people, including media personnel, to move freely through the apartment where 14-year-old Aarushi Talwar was found murdered. Twenty-eight fingerprint samples became unusable due to smudging.

India allocates less than 1.25 per cent of its police budgets to training; only four states cross even 2 per cent. The infrastructure supporting investigations is equally compromised. According to the 'India Justice Report 2025', out of nearly 10,000 sanctioned posts in forensic laboratories across states, nearly 50 per cent lie vacant. In many states, even basic resources like fuel for police vehicles or stationery often run out.

Perhaps the deepest flaw is a historical over-reliance on custodial confessions, often obtained through violence. India still has no standalone anti-torture law, despite signing the UN Convention Against Torture in 1997. This, when the country recorded 1,169 custodial deaths between 2011 and 2022. Not one police officer has been convicted.

Even in the Mumbai train blasts case, the Bombay High Court described confessions as extracted through "barbaric and inhuman" methods. In Nithari, police leaned almost entirely on Koli's confession before the magistrate—recorded after nearly 60 days of police custody, without legal aid. There was no medical examination, the brain mapping test lacked oversight, and the confession itself had signs of tutoring and coercion.

COURTS IN SLOW MOTION

Even when the police manage to gather substantial evidence, India's slow-moving courts often ensure it withers long before a verdict. The judiciary is overwhelmed: more than 53 million cases are pending and, by NITI Aayog's estimates, clearing the backlog at current disposal rates would take 324 years. A key reason: India has barely 21 judges per million people, far below the roughly 150 in the US.

Asthana argues that most acquittals have little to do with shoddy investigations. Cases, he says, often collapse because judges demand rigorous procedural proof, even when guilt appears unmistakable. Much turns on whether witnesses can recall small details years later—the colour of a victim's clothes, the sequence of events—gaps that defence lawyers in high-stakes trials exploit with precision. "In most cases, investigations do meet high standards," says Asthana. "Whether a case results in conviction depends on how the court evaluates the evidence. Often, the court simply

ACQUITTALS THAT



HINDUSTAN TIMES

MALEGAON BLAST (2008)

Six killed, over 100 injured in a Ramzan-time blast in Maharashtra town. **All seven suspects acquitted in July 2025** as the NIA court found "no reliable evidence". Among them were Pragya Thakur (above) and Lt Col. Prasad Purohit, alleged to be linked to Hindu extremist groups

NOIDA DOUBLE MURDER (2008)

Aarushi Talwar, 14, found murdered in her bedroom; domestic help Hemraj's body recovered from the terrace. Aarushi's **parents were convicted, but later acquitted in 2017** as the court found "no direct evidence on record" and called the CBI's honour killing theory "patently absurd". Appeals are pending in the Supreme Court